

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 05/28/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	9:00 AM	CASE NUMBER:	MSC20-02134
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CASE NAME:	TERESA NEENO VS. BARRY HACK
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*FURTHER CASE MANAGEMENT CONFERENCE
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FILED BY:

<u>*TENTATIVE RULING:*</u>

If the tentative rulings go uncontested, further Case Management Conference is set for July 23, 2026, 9:00 a.m. to trail the future hearing in this matter. If either Party challenges the tentative rulings on Line 17 and 18, a Case Management Conference will be held.
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2.	9:00 AM	CASE NUMBER:	MSC22-00088
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CASE NAME:	KALAMAS VS. JOHN MUIR HEALTH
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*HEARING ON MOTION IN RE: RECALCULATION OF COSTS - CONTROL DATE
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FILED BY:

TENTATIVE RULING:

The Court issued its final order on the Motion to Tax Costs. No appearance is required and this date is vacated.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-01689
CASE NAME: BRIAN SWEET VS. EVENT CORPORATION
***HEARING ON MOTION IN RE: ORDER APPROVING SETTLEMENT**
FILED BY: SWEET, BRIAN
TENTATIVE RULING:

Brian Sweet moves for approval of the settlement of his PAGA suit against defendant Event Corporation.

A. Background of the Case and Terms of Settlement

This a PAGA case, alleging a variety of violations of the Labor Code concerning failure to provide rest and meal breaks, failure to pay for off-the-clock work, failure to reimburse business expenses and cascading derivative violations. Plaintiff has given notice to the LWDA. The complaint was filed June 12, 2023. There is no class action, only a PAGA claim.

The total settlement payment is \$100,000. This is composed of attorney's fees of \$33,333.33, litigation costs of \$11,935.88, and \$3,450 in costs to the settlement administrator (ILYM Group). The remaining amount would be a PAGA penalty of \$51,280.79, which would be apportioned 75% to the LWDA and 25% to the aggrieved employees, i.e., \$38,547.51 to the LWDA and \$12,849.17 to the aggrieved employees. There is no enhancement payment for Mr. Sweet.

The settlement indicates that there are an estimated 130 aggrieved employees and 3,510 pay periods at issue. The payments from the employee share of the penalty will be distributed among the employees based on the number of pay periods each individual worked during the PAGA period.

Plaintiff's counsel attests that they engaged in extensive arms-length settlement negotiations. Informal discovery was undertaken. Counsel's declarations provide a general discussion of the strengths and weaknesses of the case. They estimate the maximum potential recovery at \$351,250, and explain why the settlement is justified.

Plaintiff provided required notices to the LWDA of the initial claims and of the proposed settlement.

The settlement provides a process for mailing the notices to the aggrieved employees, who will not have to submit a claim, along with a process for following up on returned mail. Because this is a PAGA settlement, not a class action, there is no opportunity to object or opt out.

The settlement provides that the value of checks uncashed after 180 days will be turned over to the State Controller's Office Unclaimed Property Division in the names of the aggrieved employees.

The settlement releases any claims under PAGA that “all claims for PAGA penalties arising during the PAGA Period that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint and the PAGA Notice dated February 17, 2023” (The PAGA period is December 4, 2020 through July 2, 2024.) Limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.” “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.) Similarly, in a PAGA case, the release is limited to claims set forth in the LWDA notice.

B. Standards for Review of a PAGA Settlement

Settlements in PAGA cases must be approved by the court. (Labor Code § 2699(s)(2).) The Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 46, 63.)

C. Application to this settlement

Plaintiff indicates that the settlement is fair and was evaluated by counsel based on adequate information and arms-length negotiation. Even assuming success on the merits of each claim, PAGA gives the court discretion to reduce penalties for a variety of reasons, including where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.” (Labor Code, § 2699(e)(2).) These factors make the result hard to predict. Considering counsel’s analysis, the Court finds that the recovery is fair, reasonable, and adequate.

Labor Code section 2699(k)(1) provides that a prevailing employee in a PAGA action may recover attorney’s fees. Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar

cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Although *Lafitte* concerns a class action, not a PAGA-only case, this Court views the use of a lodestar cross-check as appropriate here.

Plaintiff has conducted a lodestar cross-check. Counsel calculate 230.5 hours, at hourly rates ranging from \$250 to \$1050, depending on the attorney. This results in a lodestar of approximately \$127,192.50, with an implied negative multiplier. Without necessarily endorsing every individual component of the lodestar, it is clear in this case that no adjustment is required.

The statute does not expressly address how the 25% plaintiff’s share of the penalties is to be allocated among all of the aggrieved employees. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 382.) Allocation based on pay periods is reasonable here.

Costs of \$11,935.88 are sought. They are reasonable and are approved.

The administrator’s costs of \$3,450 are reasonable and are approved.

D. Conclusion

The Court finds that the settlement is fair, reasonable, and adequate, and grants the motion to approve.

The Court will sign the proposed order previously submitted. In addition, the Court will add a compliance hearing for a suitable date (after the settlement has been implemented). One week before the compliance hearing, counsel shall file a compliance statement. 5% of the attorney’s fees shall be withheld by the Administrator pending the compliance hearing.

4. 9:00 AM CASE NUMBER: C23-02629
CASE NAME: WENDY GLASS VS. NAVNEET BAL
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: BAL, NAVNEET K
TENTATIVE RULING:

Counsel for Defendants Harvrinder Singh Bal, East Bay Trans, Navneet K. Ball, and Haver Trans seek to withdraw as counsel in this matter. They have provided a declaration. The Court received no filings from any other interested parties.

For good cause, the Court now **grants** the Motion to Be Relieved as Counsel. The Court advises Defendants that corporations may not represent themselves.

5. 9:00 AM CASE NUMBER: C23-03039
CASE NAME: GERALD BEWLEY VS. DIABLO SOLAR SERVICES INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANT DIABLO SOLAR SERVICES, INC. TO PROVIDE FURTHER RESPONSES TO FORM INTERROGATORIES (SET ONE)**

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Form Interrogatories – Employment. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be awarded in the amount of \$4,660 payable within 30 days of this order.

Defendants Diablo Solar Services and Bryan Ramond lacked representation from December 26, 2023—when Bryan Ramond, agent for service of process for the corporation was served—until December 2024. Subsequently, Defendants’ counsel was permitted to withdraw on October 16, 2025. Mr. Raymond and, crucially, Diablo Solar Services were again unrepresented until January 14, 2026. Plaintiff attempted to encourage Mr. Raymond to get his company represented but he did not respond well to these inquiries.

Meanwhile, Plaintiff Bewley served discovery requests, including these Form Interrogatories – Employment, on January 31, 2025. Defendants served responses on March 17, 2025. The parties met and conferred regarding these responses, but that meet and confer was largely unsuccessful. A large part of the lack of progress can be attributed to Mr. Raymond’s lack of counsel.

Facing a deadline, Plaintiff filed this Motion on November 14, 2025. Now that Defendants are once again represented, communications about the deficient discovery responses resumed March 18, 2026 and continued until recently. Defendants amendment responses April 22, May 8, and May 13, 2026. Plaintiff promptly notified the Court on May 14, 2026 that all substantive issues have now been addressed.

Given Defendant Bryan Raymond’s inaction (on his own behalf and on behalf of his company) in acquiring required counsel and the effect of that delay in requiring Plaintiff to file this (and related) motions, sanctions are appropriate. Code of Civ. Pro. § 2023.030. The sanctions will *not* issue against his current counsel. While the Court would have appreciated slightly more expeditious resolution of these issues, sufficient work was done to remedy the substantive concerns in a reasonable fashion that the attorneys will not be penalized.

6. 9:00 AM

CASE NUMBER: C23-03039

CASE NAME: GERALD BEWLEY VS. DIABLO SOLAR SERVICES INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS-GENERAL, SET 1**

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Form Interrogatories – General. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be

awarded in the amount of \$4,660 payable within 30 days of this order.

Defendants Diablo Solar Services and Bryan Ramond lacked representation from December 26, 2023—when Bryan Ramond, agent for service of process for the corporation was served—until December 2024. Subsequently, Defendants’ counsel was permitted to withdraw on October 16, 2025. Mr. Raymond and, crucially, Diablo Solar Services were again unrepresented until January 14, 2026. Plaintiff attempted to encourage Mr. Raymond to get his company represented but he did not respond well to these inquiries.

Meanwhile, Plaintiff Bewley served discovery requests, including these Form Interrogatories – General, on January 31, 2025. Defendants served responses on March 17, 2025. The parties met and conferred regarding these responses, but that meet and confer was largely unsuccessful. A large part of the lack of progress can be attributed to Mr. Raymond’s lack of counsel.

Facing a deadline, Plaintiff filed this Motion on November 14, 2025. Now that Defendants are once again represented, communications about the deficient discovery responses resumed March 18, 2026 and continued until recently. Defendants amendment responses April 22, May 8, and May 13, 2026. Plaintiff promptly notified the Court on May 14, 2026 that all substantive issues have now been addressed.

Given Defendant Bryan Raymond’s inaction (on his own behalf and on behalf of his company) in acquiring required counsel and the effect of that delay in requiring Plaintiff to file this (and related) motions, sanctions are appropriate. Code of Civ. Pro. § 2023.030. The sanctions will *not* issue against his current counsel. While the Court would have appreciated slightly more expeditious resolution of these issues, sufficient work was done to remedy the substantive concerns in a reasonable fashion that the attorneys will not be penalized.

7. 9:00 AM CASE NUMBER: C23-03039

CASE NAME: GERALD BEWLEY VS. DIABLO SOLAR SERVICES INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS, SET 1**

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Requests for Production of Documents. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be awarded in the amount of \$1,670 payable within 30 days of this order.

Defendants Diablo Solar Services and Bryan Ramond lacked representation from December 26, 2023—when Bryan Ramond, agent for service of process for the corporation was served—until December 2024. Subsequently, Defendants’ counsel was permitted to withdraw on October 16, 2025. Mr. Raymond and, crucially, Diablo Solar Services were again unrepresented until January 14, 2026. Plaintiff attempted to encourage Mr. Raymond to get his company represented but he did not

respond well to these inquiries.

Meanwhile, Plaintiff Bewley served discovery requests, including these Requests for Production of Documents, on January 31, 2025. Defendants served responses on March 17, 2025. The parties met and conferred regarding these responses, but that meet and confer was largely unsuccessful. A large part of the lack of progress can be attributed to Mr. Raymond's lack of counsel.

Facing a deadline, Plaintiff filed this Motion on November 14, 2025. Now that Defendants are once again represented, communications about the deficient discovery responses resumed March 18, 2026 and continued until recently. Defendants amendment responses April 22, May 8, and May 13, 2026. Plaintiff promptly notified the Court on May 14, 2026 that all substantive issues have now been addressed.

Given Defendant Bryan Raymond's inaction (on his own behalf and on behalf of his company) in acquiring required counsel and the effect of that delay in requiring Plaintiff to file this (and related) motions, sanctions are appropriate. Code of Civ. Pro. § 2023.030. The sanctions will *not* issue against his current counsel. While the Court would have appreciated slightly more expeditious resolution of these issues, sufficient work was done to remedy the substantive concerns in a reasonable fashion that the attorneys will not be penalized.

8. 9:00 AM CASE NUMBER: C23-03039

CASE NAME: GERALD BEWLEY VS. DIABLO SOLAR SERVICES INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET 1**

FILED BY: BEWLEY, GERALD

TENTATIVE RULING:

Plaintiff Gerald Bewley brought this Motion to Compel Supplemental Responses to Special Interrogatories. By the time of the hearing on this matter, all substantive issues relating to the discovery responses have been addressed. Only the issue of sanctions remains. For the reasons stated below, sanctions against Defendant Bryan Raymond and Diablo Solar Services only will be awarded in the amount of \$3,740 payable within 30 days of this order.

Defendants Diablo Solar Services and Bryan Ramond lacked representation from December 26, 2023—when Bryan Ramond, agent for service of process for the corporation was served—until December 2024. Subsequently, Defendants' counsel was permitted to withdraw on October 16, 2025. Mr. Raymond and, crucially, Diablo Solar Services were again unrepresented until January 14, 2026. Plaintiff attempted to encourage Mr. Raymond to get his company represented but he did not respond well to these inquiries.

Meanwhile, Plaintiff Bewley served discovery requests, including these Special Interrogatories, on January 31, 2025. Defendants served responses on March 17, 2025. The parties met and conferred regarding these responses, but that meet and confer was largely unsuccessful. A large part of the lack of progress can be attributed to Mr. Raymond's lack of counsel.

Facing a deadline, Plaintiff filed this Motion on November 14, 2025. Now that Defendants are once

again represented, communications about the deficient discovery responses resumed March 18, 2026 and continued until recently. Defendants amendment responses April 22, May 8, and May 13, 2026. Plaintiff promptly notified the Court on May 14, 2026 that all substantive issues have now been addressed.

Given Defendant Bryan Raymond's inaction (on his own behalf and on behalf of his company) in acquiring required counsel and the effect of that delay in requiring Plaintiff to file this (and related) motions, sanctions are appropriate. Code of Civ. Pro. § 2023.030. The sanctions will *not* issue against his current counsel. While the Court would have appreciated slightly more expeditious resolution of these issues, sufficient work was done to remedy the substantive concerns in a reasonable fashion that the attorneys will not be penalized.

9. 9:00 AM CASE NUMBER: C24-02709

CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: YEFENAU, PAVEL

TENTATIVE RULING:

Defendant Pavel Yefenau brings this Motion to Compel Further Responses to Amended Responses to Defendant's First Set of Request for Production of Documents served on Plaintiff Maria Seredkina. Plaintiff opposed this Motion on the grounds that the amended responses have now been amended again, rendering the Motion moot. Defendant's reply objects to this premise but also alleges that two responses remain inadequate.

Background

This matter involves alleged invasion of privacy by Defendant, Plaintiff's husband, in the discovery of Plaintiff's extramarital affair.¹ This is the fourth discovery motion on calendar in the last month relating to Plaintiff's deficient discovery responses. On April 30, the Court heard three motions, all of which involved last-minute amendments by Plaintiff purportedly rendering the motions moot. On those motions, the Court granted sanctions. Once again, Plaintiff has amended discovery responses "concurrently with [her] opposition." Defendant argues that Requests 9 and 16 still contain insufficient responses.

Analysis

Request for Production of Documents No. 9

Defendant seeks documents relating to Defendant's access of Plaintiff's devices without her consent. Plaintiff responded by referencing produced documents relating to a forensic audit of her devices. As Defendant explains, this audit revealed no hacking or compromise of the devices. Defendant complains that the response is inadequate because it fails to acknowledge that there *was no* unauthorized access of the devices. While Defendant—on the information before the Court—appears

¹ This Court is aware of simultaneous dissolution proceedings in Family Court but is not aware whether they have resulted in final dissolution of the marriage and so may have misstated the current marital status.

to be correct, that is an argument for later and does not render this discovery response inadequate.

Request for Production of Documents No. 16

Defendant seeks documents relating to Plaintiff's employer's response to reports of unauthorized access of her work devices. Plaintiff referenced a portion of a text between Plaintiff and her employer. Defendant argues that Plaintiff never produced the entire communication, which Defendant had to subpoena from the employer. That full communication, however, contains no further information responsive to this discovery request. Indeed, it appears that the employer did not further respond to these reports. Again, Defendant appears to be arguing that Plaintiff has no evidence to support her claims, but that does not render *this* discovery response inadequate.

Sanctions

Defendant also seeks sanctions in the amount of \$2,910.00. Plaintiff has amended responses and claims that renders the motion moot, and on that basis believes the request for sanctions should be denied. California Rule of Court 3.1348(a) provides: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed." Sanctions here are appropriate. The Court has previously addressed that Plaintiff's behavior increases the burden on the other party *and* the Court and is not proper. The Court awards sanctions in the amount of \$2,910.00 against Plaintiff Maria Seredkina and her counsel, Joseph Goethals of Goethals & Stone, P.C., payable within 60 days of the date of the order.

10. 9:00 AM CASE NUMBER: C24-02709

CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU

***HEARING ON MOTION FOR DISCOVERY QUASH DEPOSITION SUBPOENA FOR PRODUCTION OF RECORDS**

FILED BY: MASCHMEIER, VICTORIA

TENTATIVE RULING:

Before the Court is third-party Victoria Maschmeier's Motion to Quash Deposition Subpoena for Production of Records; and Request for Monetary Sanctions. For the reasons set forth below, the Motion is **granted**.

In December 2025, Plaintiff Maria Seredkina served a subpoena on Google, LLC Corporation Service Company for documents relating to third-party Victoria Maschmeier. Ms. Maschmeier became aware of this subpoena because she received a notice from Google on December 18, 2025 notifying her of the subpoena and the obligation to file a Motion to Quash (and provide notice of it to Google) by January 8, 2026. Her counsel reached out to counsel for Seredkina and requested that the subpoena be withdrawn. That was not done prior to January 8, 2026, and Maschmeier filed the instant motion, and it was scheduled for hearing May 28, 2026. Ms. Maschmeier argues that she was never provided notice of the subpoena, and has still never received copies.

On May 15, 2026, Plaintiff filed an opposition to this motion noting that on May 12, counsel had

notified counsel for Ms. Maschmeier that Plaintiff with withdrawing the subpoena. On May 15, he notified Google of this withdrawal. Plaintiff now argues that the Motion is moot and no sanctions should issue. Plaintiff never argues that the subpoenas were proper or that the required notice was given or consent received. 18 U.S.C. § 2702 (requiring consumer consent prior to disclosure); Code Civ. Pro. § 1985.3 (requiring notice to consumer prior to service of subpoena for personal records).

Ms. Maschmeier responds with citation to *Roe v. Halbig*, 29 Cal.App.5th 286, 305 (2018). Unfortunately, *Roe* construes Code of Civil Procedure section 1987.2(c), which is not at issue here. The parallels with anti-SLAPP law to determine whether a withdrawn subpoena relating to free speech are simply not present here, where there has been no such showing. The Court will instead simply read the words of section 1987.2(a), which notes that reasonable attorney's fees can be awarded if "one or more of the requirements of the subpoena was oppressive." In this case, where the subpoena was clearly improper—both substantively and procedurally—and Plaintiff declined to make any move to withdraw it until the day the opposition was due, sanctions are appropriate. Counsel for Ms. Maschmeier's request for approximately ten hours of work in preparing and filing this Motion is appropriate, as it would not have been necessary absent Plaintiff's service of and failure to timely withdraw a subpoena, which she cannot defend. Sanctions against Plaintiff and her counsel are awarded in the amount of \$4,370.00, payable to Counsel Patton Sullivan Brodehl LLP within 30 days of this Order.

11. 9:00 AM CASE NUMBER: C24-03254
CASE NAME: MAJERRIS WALKER VS. CITY OF PITTSBURG
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: CITY OF PITTSBURG
TENTATIVE RULING:

The City's demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before June 8, 2026. Should plaintiff elect not to amend, the time to answer will run from that date.

I. Factual Background

This matter involves allegations of police brutality. Plaintiff, Majerris Walker, alleges that when he called the police for help, they arrived and treated him as if he were a threat. Without provocation or cause, they illegally searched his car and asked him the location of "the gun." When plaintiff asked why the officers were searching his car without probable cause, the police told him he was being detained. One officer pushed plaintiff and when plaintiff questioned why he was being grabbed, all officers tackled plaintiff and used unnecessary violence. One police officer unnecessarily had his car towed.

Plaintiff was arrested and in the police car, the officers asked inappropriate questions in an attempt to create a pretext for the search. Plaintiff was jailed for three days and charged with two misdemeanors. Approximately one year after the incident, plaintiff was granted "arrest relief" under Penal Code 851.93 (charges dismissed or no conviction and record cleared). Still, plaintiff had to pay fees to get his car back, lost his job as the result of the arrest, and was unable to qualify for unemployment because the termination was considered "for cause." Plaintiff had to take out loans,

damaging his credit in the process.

Plaintiff brought suit against the City of Pittsburg and Doe defendants (which include the police officers involved) in November 2024 alleging: (1) Malicious Prosecution, (2) False Arrest / False Imprisonment, (3) Battery, (4) Negligence, (5) Violation of Cal. Civ. Code § 52.1, (6) Intentional Infliction of Emotional Distress, (7) Negligent Hiring, Supervision, and Retention, and (8) Assault.

The Court sustained a previous demurrer with respect to the seventh cause of action, allowing plaintiff leave to amend for two purposes: to attempt to properly state a cause of action for Negligent Hiring, Supervision, and Retention, and also to name the individual officers involved in the incident, which plaintiff stated he had “recently learned.” Plaintiff’s Second Amended Complaint (“SAC”) includes some revisions, but still does not name the officers involved. In response to the SAC, the City filed the present demurrer, which plaintiff opposes.

II. Meet and Confer Efforts

The City’s counsel submits a declaration that on November 11, 2025, he spoke with plaintiff’s counsel by telephone regarding the issues raised on demurrer.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

A complaint must contain a "statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a).) While it is true that pleading conclusions of law does not fulfill this requirement, it has long been recognized that the distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree. For example, the courts have permitted allegations which obviously included conclusions of law and have termed them 'ultimate facts' or 'conclusions of fact. What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6, citations omitted.)

IV. Discussion

With respect to the seventh cause of action for negligent hiring, supervision, and retention, the City argues plaintiff still fails to allege sufficient facts demonstrating that the City had knowledge of any alleged incompetence or misconduct of its employees, and that such alleged misconduct was a substantial factor in causing plaintiff’s harm.

Plaintiff’s paragraph 33 alleges as follows, with the italicized text being new to this iteration of the complaint:

33. The Doe officers were employed by Pittsburg and the Pittsburg Police Department. These officer(s) were or became unfit or incompetent to perform the work of a police officer. Their employer knew or should have known that these officers were unfit and incompetent and this caused them to be a serious safety risk to the general public. *Upon information and belief, the City of Pittsburg and their Police Department knew or should have known that these officers had engaged in unlawful arrests without probable cause, retroactively attempted to justify unlawful*

arrests, and inappropriately charged individuals in the past, and that they were continuing to engage in such conduct. Defendants failed to take reasonable steps to prevent further unlawful conduct by these officers whom they had reason to know would continue such conduct. The officers' unfitness and incompetence harmed Mr. Walker and the hiring, supervising, and retention of said officers was a substantial factor in causing Mr. Walker's harm.

Defendants contend the allegation of information and belief is insufficient because it does not provide a factual basis for plaintiff's information and belief. Citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531 and *Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, defendants argue that a plaintiff may plead matters on information and belief when the facts are outside his personal knowledge, but he must still plead the information that leads him to believe the allegation is true. (*Doe, supra*, 42 Cal.4th at 551, fn. 5.)

As noted in the opposition, plaintiff's allegations appear to mirror those in *C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, wherein the California Supreme Court upheld the sufficiency of similar allegations, albeit in a very different context (school district's liability for the acts of an employee who was also a sexual predator). The City attempts to distinguish that case based on one sentence that proclaims no liability based on "assumptions or speculation," but the sentence, when read in full, emphasizes the need for evidence, and that is not the stuff of demurrers. (*Id.* at 878.)

The case is notable for what plaintiffs there alleged, however. In *C.A. v. William S. Hart Union High School Dist.*, the allegations on information and belief were alleged to be based on "personnel and/or school records of Defendants [that] reflect numerous incidents of inappropriate sexual contact and conduct with minors by teachers, staff, coaches, counselors, advisors, mentors and others, including incidents involving Hubbell, both on and off the premises of such Defendants." (*Id.* at 866-867.) This contrasts with the complete lack of allegations concerning a basis for plaintiff's belief in the present case.

The City is correct that more is needed here if plaintiff seeks to proceed on "information and belief." This is particularly true given that plaintiff should know, at a minimum (given the deposition of the lead officer), which officers were involved in the incident.

The demurrer to the seventh cause of action is sustained. However. Since the plaintiff seeks leave to amend, which is liberally granted, the Court will allow it.

12. 9:00 AM CASE NUMBER: C25-01274

CASE NAME: MARK ZUCCA VS. NELLY PICKERT

HEARING ON DEMURRER TO: COMPLAINT OR IN THE ALTERNATIVE, JUDGMENT ON THE PLEADINGS

FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer filed by defendants, SV Quick Capital Corporation ("SVQ") and Eminent Capital Investments, LLC ("ECI"). The demurrer is **sustained with leave to amend**, as discussed below. Any amended complaint shall be filed and served on or before August 28, 2026 (due to a pending motion to withdraw by plaintiff's counsel, the date is set out further than the usual ten

days).

Background

Plaintiff, Mark Zucca, through his attorney-in-fact, filed a complaint in this action on May 5, 2025. He alleges twenty-two causes of action against multiple defendants. At the heart of his claims is the contention that he lent \$41,500 (though at times the amount stated is \$40,000) to defendant Nelly Mercedes Rickert in December of 2022. (Complaint, ¶¶22, 36-39.) Zucca contends he should have been paid back no later than December 31, 2022 according to the terms of the relevant promissory note. (*Id.* at Ex. 11.) He contends Ricket falsely promised the debt would be secured by a deed of trust, but never intended to perform that promise and the debt was never secured by a deed of trust. (*Id.* at ¶¶38-39, 132-133.) Plaintiff has named Rickert and multiple lenders who he alleges were conspiring with Rickert to defraud him.

Moving defendants, SV Quick Capital and Eminent Capital, responded by filing the present demurrer to causes of action 1-9 (fraudulent transfer counts), 11-12 (injunctive relief and common law fraudulent transfer), and 22 (declaratory relief) pursuant to Code of Civil Procedure section 430.10, subdivision (e). In support of the demurrer, they submit a Declaration of Wheng Wang, who purports to be an “authorized representative” of each of the two demurring entities.

Meet and Confer

The hearing on the demurrer was originally noticed for March 19, but the Court concluded additional compliance with meet and confer requirements was necessary. Accordingly, the hearing was re-set to April 9, 2026, but parties stipulated to continue the deadline for further meet and confer.

On April 3, 2026, moving parties filed a CMC statement that communicated the following:

Defendant has been unable to meaningfully comply with the Court’s meet and confer directive due to circumstances outside of Defendant’s control, namely Plaintiff’s lack of identified counsel and failure to provide a point of contact authorized to engage in the required discussions. Defendant remains ready, willing, and able to comply with the Court’s order and to participate in a good faith meet and confer immediately upon Plaintiff identifying counsel or confirming self-representation.

The Court accepts this, together with the fact that the motion has been full briefed (including a substantive opposition), as sufficiently compliant with the requirements, and a reason to proceed on the merits.

Evidentiary Matters

Demurring defendants request judicial notice of facts contained in the Declaration of Wheng Wang pursuant to Evidence Code, § 452(h). Specifically, that (1) Eminent Capital is a corporation owned and operated by the same owner of SV Quick Capital; (2) in 2022 Rickert obtained a series of loans from SV Quick Capital, each secured by a deed of trust against the Orinda property and (3) each of those encumbrances, in addition to senior encumbrances by third parties, exhausted the property’s equity.

Subdivision (h) of Evidence Code section 452 allows a court to take notice of “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” The statements in the declaration are not such facts. Nor do the moving defendants specify any “sources of reasonably

indisputable accuracy” that would immediately verify these facts. The request is **denied**.

Both sides submit evidence not properly considered on demurrer. The inquiry here, as noted below, is focused on what is pleaded (or subject to judicial notice), not extrinsic evidence.

Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.) In ruling on a demurrer, the court considers the face of the pleading attacked and matters subject to judicial notice. (Code Civ. Proc. § 430.30(a).)

Discussion

A. Counts 1-9 and 12 (fraudulent transfer counts)

Demurring defendants, SQV and ECI, argue counts 1-9, as well as 12, are not adequately pleaded based on the lack of specific facts that would amount to a fraudulent transfer. They further argue that they received reasonably equivalent value for their loans and that the complaint fails to allege insolvency. The Court need not reach the latter fact-based arguments because it sustains the demurrer based on the former.

Although SVQ and ECI do not directly mention uncertainty, it is impossible to determine whether sufficient facts are alleged based on uncertainty. Without explicitly stating the defendants against whom each count is pleaded, the complaint groups multiple defendants in numerous allegations. For example, in paragraph 64, plaintiff alleges, “Defendants, singularly and jointly, conspired to carry out a plot to defraud all creditors by engaging in fraudulent real estate transactions[.]” Because SVQ and ECI are both creditors and defendants, the allegation essentially accuses these defendants of defrauding themselves.

In other places, such as the fourth and fifth causes of action, the complaint completely omits any allegations against SQV and ECI, causing significant uncertainty as to which defendants are subject to that aspect of the complaint. (See, e.g., Complaint, ¶¶101-104.) The definition of “Defendants” further complicates any possibility of determining who is being referenced throughout the complaint because the term includes “all of the Defendants, jointly and severally.” (Complaint, ¶13.) In other places, “Defendants” appears to only refer to Nelly Rickert. (See, e.g., Complaint, ¶35 [“Defendants were acutely aware of their insolvency prior to Defendants seeking out a loan from Plaintiff in the amount of \$41,500.”].)

Further, while several alleged transactions (such as a grant of plaintiff’s Orinda property for \$1.00 in consideration, three separate and incomplete bankruptcy proceedings, and transfers of 1% interest in real property, later “corrected” to 50% interest) certainly suggest irregular circumstances, plaintiff does not describe how each transaction satisfies any particular element of a fraudulent transfer claim. Nor does plaintiff explain how SQV and ECI are implicated in each of the transactions, if at all. As defendants maintain, parroting the statute is not enough, particularly where many transactions are at issue and none is specifically referenced.

Plaintiff’s opposition, in arguing the complaint’s allegations are sufficient, does not cite specific paragraphs of the complaint. The opposition employs phrases such as “double dipping” and “second bite of the apple” without explaining their meaning or applicability of these concepts as they

pertain to the elements of a fraudulent transfer. Instead, plaintiff impermissibly attaches additional unauthenticated exhibits to the memorandum of points and authorities with no request for judicial notice. To the extent that these exhibits are not duplicative of the 38 exhibits already attached to the complaint, plaintiff may attach them to any amended complaint to ensure they are considered.

The general demurrer is sustained with respect to counts 1-9 and 12. Because this is the first challenge to the pleading, and since plaintiff appears to be capable of further clarifying the grounds for his claims, leave to amend is granted.

B. Count 11 (Injunctive Relief)

Plaintiff seeks an injunction to prevent “any other actions” by “Defendants” which have the ability to harm his recovery, as well as imposition of a constructive trust with respect to the fraudulently conveyed assets. SQV and ECI demur, arguing the count is a remedy, not a cause of action. The Court concurs that no cause of action is stated. To the extent plaintiff seeks to enjoin any actions by SQV or ECI, it is not clear and no facts are offered in support of any injunctive relief against them.

The general demurrer is sustained with respect to count 11. Because this is the first challenge to the pleading, leave to amend is granted.

C. Count 22 (Declaratory Relief)

Citing Code of Civil Procedure, § 1060, SQV and ECI argue no declaratory relief cause of action is stated against them. The Court agrees that none of the allegations in this count specifically refers to SQV or ECI. As set forth in the demurrer, any declaratory relief as to plaintiff’s note would relate only to the parties to that note, not demurring defendants.

Accordingly, the demurrer is sustained with respect to the cause of action for declaratory relief. Leave to amend is granted.

13. 9:00 AM CASE NUMBER: C25-01714

CASE NAME: OCEAN VIEWS LLC/ BRANDON ROWE VS. DISCOVERED USA, INC

***HEARING ON MOTION IN RE: LEAVE TO AMEND INITIAL COMPLAINT**

FILED BY: OCEAN VIEWS LLC/ BRANDON ROWE

TENTATIVE RULING:

Before the Court is Plaintiffs Ocean Views LLC and Brandon Rowe’s Motion for Leave to Amend Initial Complaint (“Motion”).

Plaintiffs’ Motion is **granted** as discussed below.

Factual Allegations and Procedural Background

Plaintiffs filed their initial complaint on June 16, 2025, alleging a single cause of action for breach of contract against Defendant Discovered USA, Inc. Mr. Rowe was initially proceeding in pro per. Discovered USA filed its Answer on July 28, 2026.

On November 3, 2025, Plaintiffs filed a Substitution of Attorney indicating the Plaintiffs were now represented by counsel. Plaintiffs filed the instant motion for leave to amend on February 23, 2026.

The Proposed FAC seeks to add two new defendants: Samba Yarlagada and Charles Pankey. It also adds several causes of action, now alleging: (1) Breach of Contract (Discovered USA); (2) Breach of Fiduciary Duty (Yarlagada and Pankey); (3) Breach of Implied Duties of Good Faith and Fair Dealing (All Defendants); and (4) Negligent Misrepresentation (All Defendants).

Defendants oppose the Motion.

Standard

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is “a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]...” (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is “‘inexcusable delay and probable prejudice to the opposing party’... [Citation.]” (*Ibid.*)

“[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.) “Generally, leave to amend must be liberally granted [Citation], provided there is no statute of limitations concern, nor any prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.)

A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1159; see also *Mesler v. Bragg Mgmt. Co.* (1985) 39 Cal.3d 290, 296-297.) “Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Ibid.* quoting *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965.)

Currently, there is no trial date. The next CMC is scheduled for November 9, 2026.

Analysis

Defendant appears to make two general arguments as to why Plaintiffs’ request for leave to amend should be denied: (1) futility of the proposed amendment; and (2) prejudice to the Defendants.

Futility of Amendment

Defendant argues that the proposed amendment would be futile as it fails to properly plead (and arguably cannot properly plead) the new causes of action. It also argues that this Court is not the proper venue for the action even if such claims could be properly asserted.

Defendant cites *Mac v. Minassian* (2022) 76 Cal.App.5th 510 in support of its position. There, a motion for leave to file a fifth amended complaint was filed the day **after** trial. (*Id.* at 515.) The proposed amended complaint proposed to add back parties that had been dismissed in the third amended complaint. (*Ibid.*) The court denied the motion, but then “effectively ignores its own ruling because it relied on the fifth amended complaint for its decision and judgment” against one of the parties that had been dismissed. (*Id.* at 518.)

The court of appeal determined the trial court abused its discretion in so ruling. It noted that “California courts have denied leave to amend where the proposed amendment to the complaint is **during or after trial**, and the amendment would require the defendant to have litigated or acted differently to assert his rights before and at trial.” (*Id.* at 519 emphasis added.) The current motion is made well before a trial date has even been set. As such, *Mac* is distinguishable.

Defendant’s citation to *Phifer v. Sacramento Hous & Redevelopment Agency*, 2009 U.S. Dist. LEXIS 81662 (2002) is likewise off point. There, plaintiff sought “leave to amend pursuant to Federal Rules of Civil Procedure 15.” (*Id.* at *3.) Discussions of federal procedure have no bearing on state court procedures.

It is true that certain situations would call for denial of leave to amend, such as when the “insufficiency of the proposed amendment is established by controlling precedent and where the insufficiency could not be cured by further appropriate amendment.” (*California Casualty Gen. Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 280-81.) However, “the preferable practice would be to permit the amendment and allow the parties to test the legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co.*, *supra*, 213 Cal.App.3d at 1048 quoting *California Casualty Gen. Ins.*, *supra*, 173 Cal.App.3d at 281.)

This appears especially appropriate where Defendants claim that this Court is not the proper venue for this matter. If that is correct, that issue should be properly raised and fully briefed by the parties so the Court can determine whether this matter should be transferred to another venue.

To the extent Defendant believes the new causes of action are without merit, or that this Court is not the proper venue for this proceeding, it can demur or move to transfer venue. Those issues, however, are more properly addressed when fully briefed and not in an opposition to a motion for leave to amend.

Prejudice

“Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Higgins v. DelFaro* (1981) 123 Cal.App.3d 559, 564.) A party opposing amendment must demonstrate that permitting the amendment will cause it to suffer prejudice. (*Rickley*, *supra*, 212 Cal.App.4th at 1159; see also *Mesler*, *supra*, 39 Cal.3d at 296-297.)

Defendant argues that it would have acted differently – e.g. by filing a demurrer and/or contesting venue – if the allegations in the proposed FAC were contained in the original complaint. This argument does not support denial of leave to amend. Once the proposed amended complaint is filed, Defendant(s) will be free to raise all those arguments. As noted above, there is no trial date, and this case is still in its infancy being less than a year old.

“In the furtherance of justice, trial courts may allow amendments to pleadings and if necessary, postpone trial. ... Motions to amend are appropriately granted as late as the first day of trial ... or even during trial ... if the defendant is alerted to the charges by the factual allegations, no matter how framed ... and the defendant will not be prejudiced.” (*Rickley*, *supra*, 212 Cal.App.4th at 1159.)

Defendant has failed to show any cognizable prejudice it would suffer if Plaintiffs are allowed to file

their proposed amended complaint.

Conclusion

“[I]t is a rare case in which ‘a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.’” (*Morgan*, supra, 172 Cal.App.2d at 530.) It is also “error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Ibid.*)

Plaintiffs’ motion for leave to amend is **granted**. Plaintiffs shall file the First Amended Complaint within 10 days of service of notice of entry of this order.

14. 9:00 AM CASE NUMBER: C25-02623
CASE NAME: LOGAN WILSON VS. CONTRA COSTA COUNTY,
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CONTRA COSTA COUNTY,
TENTATIVE RULING:

Defendant Contra Costa County’s demurrer is **overruled as to cause of action one and sustained with leave to amend as to cause of action three**. Plaintiff has ten days from the notice of entry of this order to file a first amended complaint.

Plaintiff was injured when he fell 16.3 feet off a pedestrian bridge. The bridge railing did not meet minimum height requirements for safety and the side Plaintiff fell from lacked any guardrail. The bridge is privately owned and located immediately next to Hap Magee Ranch Park in Danville. There was no signage, fencing, barriers or other warnings to alert Plaintiff that he was leaving the park or that the bridge presented hazards. (Comp. ¶1.)

Plaintiff alleges that the park was jointly owned and operated by Contra Costa County and the Town of Danville, which are alleged to be public entities. (Comp. ¶¶1, 5.) The bridge was owned, operated and maintained by Ludden Gerald Francis, Watson Nancee and the Gerald F. Ludden and Nancee Watson Trust. (Comp. ¶1.)

Plaintiff sued for (1) dangerous condition of public property (public entity defendants), (2) premises liability (private defendants) and (3) negligence (all defendants). The County filed this demurrer to causes of action one and three, arguing that the facts alleged are insufficient to state a cause of action under Code of Civil Procedure section 430.10(e).

Dangerous Condition of Public Property (c/a 1)

The County argues that the dangerous condition of public property claim fails because (1) the County did not own or control the bridge and (2) the County is immune under Government Code section 830.2.

Adjacent property liability

A claim for dangerous condition of public property is permitted under Government Code section 835. “Section 835 provides that a public entity may be held liable for such injuries “if the plaintiff establishes [(1)] that the property was in a dangerous condition at the time of the injury, [(2)] that the injury was proximately caused by the dangerous condition, [and] [(3)] that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred.” In addition, the plaintiff must establish [(4)] that either: (a) “[a] negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition . . .,” or (b) “[t]he public entity had . . . notice of the dangerous condition . . . a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” [Citation.]” (*Thimon v. City of Newark* (2020) 44 Cal.App.5th 745, 753.)

A dangerous condition of public property is defined in Government Code section 830. “‘Dangerous condition’ means a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code section 830(a).) Section 830 provides that “‘Property of a public entity’ and ‘public property’ mean real or personal property owned or controlled by the public entity...” (Gov. Code section 830(c).)

Here it is alleged that the private defendants owned and controlled the bridge and that the County owned and controlled the park, next to the bridge. In its moving papers, the County cites only to the Law Revision Comments for section 830 to discuss when there is a dangerous condition based upon conditions at an adjacent property. In reply, the County cited to new cases; the County should have provided these citations in its moving papers. Further, *Hedayatzadeh v. City of Del Mar* (2020) 44 Cal.App.5th 555 and *Avery v. County of Santa Clara* (1968) 257 Cal.App.2d 708 were decided on summary judgment, not demurrer.

The Law Revision Comments for section 830 provide guidance on when there is a dangerous condition on public property due to conditions on an adjacent property. “[A] a public entity cannot be held liable for dangerous conditions of ‘adjacent property.’ A public entity may be liable only for dangerous conditions of its own property. But its own property may be considered dangerous if it creates a substantial risk of injury to adjacent property or to persons on adjacent property; and its own property may be considered dangerous if a condition on the adjacent property exposes those using the public property to a substantial risk of injury.” (Gov. Code section 830 Law Revision Comments.)

The Law Revision Comments provide the following examples: “A tree located on public property may have a decayed limb overhanging private property and creating a hazard to that property and the persons on it. Explosives on public property may create a hazard to a wide area of private property adjacent to the public property.” (*Ibid.*)

In opposition, Plaintiff cites to several cases, including *Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139. The California Supreme Court addressed when there is a dangerous condition where the actual danger is located on an adjacent property. The Supreme Court

explained that “public property has also been considered to be in a dangerous condition ‘because of the design or *location* of the improvement, the interrelationship of its structural or natural features, or the presence of latent hazards associated with its normal use.’ [Citation.]... [T]he Courts of Appeal have, consistent with the Law Revision Commission comment, recognized that hazards present on adjoining property may create a dangerous condition of public property when users of the public property are necessarily exposed to those risks.” (*Id.* at 149.)

In *Bonanno*, the plaintiff was injured when she attempted to cross a busy street to reach a bus stop. The Court held that the transportation agency was liable because of the location of its bus stop, even though the accident did not occur on land owned or controlled by the agency. *Bonanno* provided several examples of when a public entity can be held liable due to a dangerous condition on an adjacent property: a city street next to railroad tracks where children often crossed the tracks after school; an uninsulated electrical wire next to a model airplane park was dangerous because of the known uses of the park (running after a model airplane); and an otherwise non-defective sidewalk was dangerous because of demolition of an adjacent building that left an eight foot drop. (*Id.* at 149-150.)

Here, Plaintiff alleged that the bridge was unsafe due to a low railing on one side and lack of a railing on the other side. The bridge was directly next to the park and functioned as an apparent pathway to and from the Subject Park. (Comp. ¶121.) The County did not warn of the dangerous condition of the bridge or create barriers or fencing to prevent access to the bridge. (Comp. ¶138.)

City and county parks are regularly used by pedestrians and people often use parks for walking. In this case it is alleged that there was a dangerous bridge next to the park, which appeared to be part of the park. This situation, whether by design or interrelationship of its features, exposed pedestrians in the park to the dangerous bridge. The Court finds that Plaintiff has sufficiently alleged a claim for dangerous condition of public property against the County based upon the County’s park being located next to an unsafe pedestrian bridge, which was an apparent pathway to and from the park.

Immunity

The County also argues that it is immune under Government Code section 830.2. “A condition is not dangerous ‘if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial, or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used.’ ([Gov. Code] § 830.2.)” (*Cordova v. City of Los Angeles* (2015) 61 Cal.4th 1099, 1105.)

The County argues that it is not liable because its failure to provide barriers or signage is minor, trivial or insignificant. The Court disagrees. The alleged dangerous condition is a pedestrian bridge without a railing on one side next to a 16-foot drop. The County’s failure to provide barriers or signage is not minor, trivial or insignificant.

The demurrer to cause of action one is overruled.

Negligence (c/a 3)

The County argues that the negligence claim fails because Plaintiff has not alleged a statutory basis for liability against the county. Plaintiff does not dispute that he needs to allege a statutory basis for liability against the County, but asks for leave to amend. Plaintiff argues that he can use his DOE allegations to include the responsible County employee.

It may be possible for Plaintiff to add a County employee as a DOE defendant, however, additional allegations supporting liability against the County will be needed. As the County points out in reply, Plaintiff will need to identify the statutory basis for liability against the County and allege facts supporting liability with particularity. (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802; *Lopez v. Southern Cal. Rapid Transit District* (1985) 40 Cal.3d 780, 795.)

The demurrer to cause of action three is sustained with leave to amend.

15. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
***HEARING ON MOTION IN RE: STRIKE DECLARATION**
FILED BY: WYRZYKOWSKI, TADEUSZ
TENTATIVE RULING:

Before the Court is Plaintiff's Motion to Strike Declaration.

Plaintiff's Motion is **denied** as set forth below.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension – the declaration at issue in this motion. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered on that same date. On January 23, 2026, Defendant filed a motion to set aside the default. On January 26, Plaintiff filed a motion to sustain default, as well as the instant motion to strike the December 1 declaration by Defendant's counsel.

On April 30, the Court granted Defendant's motion to set aside the default. On May 7, the Court denied Plaintiff's motion to sustain the default.

Analysis

Initially, it is unclear upon what legal authority Plaintiff bases his motion to "strike declaration." While Plaintiff cites various federal, state, civil, and criminal codes, he does not explain how any of them

support his motion to strike defense counsel's form declaration of demurring party in support of automatic extension (CIV-141). The arguments also appear to mostly mirror those made by Plaintiff in his motion to sustain default, which this Court already rules upon.

The Court already addressed the issues raised in this motion in its May 7, 2026, order relating to Plaintiff's motion to sustain default. That order, denying Plaintiff's motion, was uncontested by Plaintiff. The same reasoning supports denial of the instant motion, and the reasoning and rationale are incorporated herein.

Conclusion

Plaintiff's motion to strike declaration is **denied**.

16. 9:00 AM CASE NUMBER: C25-02965
CASE NAME: MICHAEL CARPENTER VS. NICK OTT
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO NICHOLAS S. SALTER FOR DEF SERA OTT
FILED BY: OTT, SERA
TENTATIVE RULING:

The motion was withdrawn. This case has been assigned to Department 16. Further Case Management Conference is set for November 17, 2026.

17. 9:00 AM CASE NUMBER: MSC20-02134
CASE NAME: TERESA NEENO VS. BARRY HACK
***HEARING ON MOTION IN RE: STAY PENDING APPEAL ON SHORTENED TIME**
FILED BY: KINDER, JUSTIN S.
TENTATIVE RULING:

Defendants' motion to stay proceedings in this action and stay enforcement of judgment pending appeal is **granted in part and denied in part**. The motion is granted as to recordation of the judgment or any easement instrument derived from the judgment. The motion is denied as to the hearing motion to tax costs, which shall proceed as scheduled on May 28, 2026.

Background

Plaintiff Teresa Neeno filed this action seeking a quiet title declaration of an equitable easement to access her property now designated as 4784 Venner Road in Martinez, which had no legal vehicular access without an easement over portions of the privately owned roads in the adjacent Muir Oaks subdivision. The Defendants are the owners of the Muir Oaks parcels underlying the roadways over which Plaintiff sought the easement.

Following a multi-day bench trial, the Court issued its Final Statement of Decision on the bifurcated first phase of trial, entering judgment in favor of Plaintiff Teresa Neeno on her second amended complaint and against Defendants on their cross-complaints (other than the Hjortsvang cross

complaint, which was bifurcated for later determination). The Court granted Plaintiff a 25-foot-wide equitable easement over Venner Road, Upton Road, John Muir Road, and the Hjortsvang "triangle" for access to and from her property at 4784 Venner Road. The easement was conditioned on Plaintiff's compliance with several restrictions designed to address Defendants' stated concerns, including prohibitions on subdividing the property, conducting an active business at the residence, and building out a certain easement to create a back-door route into Muir Oaks, as well as an obligation to pay an equal share of road maintenance assessments (conditioned on at least three-quarters of Muir Oaks parcel owners actually paying the same assessment, to guard against the risk that Plaintiff alone could be coerced into footing assessments that other owners are not required to pay). The Court further awarded nominal damages of \$100 to each remaining defendant household, plus an additional \$200 to the Hjortsvangs for the easement over the Hjortsvang triangle. Plaintiff was deemed the prevailing party.

On January 5, 2026, Defendants Gilbert French and Patricia French, as Co-Trustees of the Gilbert French and Patricia French Trust Dated August 11, 2004, Robert French, Julie French, Paul Engler, Rita Engler, Branon Long, Vicky D. Jared, as Trustee of the Jared Family Revocable Trust U/A/D 08-09-07, and David Timothy Hjortsvang and Erick Warren Hjortsvang, as Co-Trustees of the Hjortsvang Trust filed a notice of appeal from the judgment entered on November 6, 2025.

On March 12, 2026, Defendants filed the instant Motion to Stay Proceedings and Stay Enforcement of Judgment Pending Appeal. Defendants seek two forms of relief pending resolution of the appeal: (1) an order staying all enforcement actions pertaining to the November 6, 2025 judgment, including recordation of the easement against Defendants' properties; and (2) a stay of the hearing on Defendants' motion to tax costs, currently set for May 28, 2026.

Analysis

By this motion, defendants request an order "confirming" that enforcement of the November 2025 judgment is stayed pending the appeal. They argue this is automatic under Code of Civil Procedure section 916 since the judgment didn't order them to pay money. Defendants additionally seek to stay the May 28, 2026 hearing on Defendants' motion to tax costs. Defendants ask that the cost hearing be postponed until the appeal is resolved, because otherwise they will have to file a second appeal of any cost award, incurring extra attorney fees and costs. They note Plaintiff will not be prejudiced because collection of any cost award is itself stayed under section 916.

In opposition, Plaintiff argues that Defendants have not presented competent, specific evidence of irreparable harm sufficient to justify a stay "beyond the automatic stay already in effect," characterizing their concerns about recordation, status quo disruption, and additional appeals as conclusory and unsupported by any particularized showing of injury. Plaintiff contends that allowing her to record and enforce the judgment does not render the appeal futile because, if Defendants succeed on appeal, any reversal can address the status of the recorded easement and any costs awarded.

As to the request to stay the cost hearing specifically, Plaintiff argues that the determination of costs is a collateral matter that is not embraced by the appeal and therefore not subject to the stay. Plaintiff argues that any concern about a second appeal is speculative, that any cost award would itself be automatically stayed pending appeal under section 917.1, and that the equities favor adjudication of

Plaintiff's statutory entitlement to costs without delay.

Civil Procedure Code section 916 provides:

Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, *including enforcement of the judgment or order*, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order"

(Code Civ. Proc., § 916, subd. (a), italics added.)

Recordation of the easement against Defendants' properties constitutes enforcement of the judgment within the meaning of section 916. The judgment grants Plaintiff an equitable easement over Defendants' real property and expressly provides that "[a] copy of this Judgment shall be recorded in the Official Records of Contra Costa County against the Property and Defendants' respective properties." Recordation is the very mechanism by which the easement is effectuated against title and made binding on subsequent owners. Because recordation gives effect to the judgment on appeal, it is a matter "embraced" in or "affected" by the appealed judgment. If the appellate court were to reverse, Defendants would be left with the burden of clearing recorded encumbrances against their titles, potentially complicated by any intervening third-party reliance. Recordation of the easement is therefore stayed under section 916.

The Court notes that Code of Civil Procedure section 917.4 provides an exception to the automatic stay under section 916, stating that the perfecting of an appeal does not stay enforcement of a judgment that "directs the sale, conveyance or delivery of possession of real property which is in the possession or control of the appellant" unless an undertaking is given. Neither party raises section 917.4 in connection with this motion. Arguably, the statute applies, as the judgment grants Plaintiff an easement, an interest in real property, over Defendants' properties and orders its recordation against their titles. On the other hand, the statute may not apply. The judgment does not order Defendants to convey or deliver anything; an easement is non-possessory, and Defendants keep full ownership and possession of their fee titles. Either way, no undertaking would be warranted here. Section 917.4 is meant to secure against waste and to compensate for use and occupancy during appeal, and neither fits a shared roadway easement. The trial court found Defendants suffered no cognizable harm from Plaintiff's use of the roads, so there is nothing for an undertaking to protect against.

The Court reaches a different conclusion as to the hearing on Defendants' motion to tax costs. Defendants contend that "[w]hile CCP § 916 does not preclude a cost hearing from taking place while an appeal is pending, a stay of the award of costs is sought by Defendants because such an award would necessarily require that they file a second appeal and then consolidate the appeals for review." (Mot., p. 5:6–10.)

As Defendants acknowledge, while enforcement of a costs judgment may be stayed pending appeal, "the filing of a notice of appeal does not stay any proceedings to determine the matter of costs...." (*Bankes v. Lucas* (1992) 9 Cal.App.4th 365, 368–369, superseded by statute on other grounds as stated in *Lee v. Wells Fargo Bank* (2001) 88 Cal.App.4th 1187, 1197).

The parties were free to stipulate to continue or stay the hearing on Defendants motion o tax, but did not do so, and nothing Defendants cite supports the proposition that the Court should decline to hear the motion as noticed. It is also not entirely clear that a separate appeal would be required in this instance. (See, e.g., *Grant v. List & Lathrop* (1992) 2 Cal.App.4th 993, 998.) In any event, the question of whether Defendants will be required to file an additional notice of appeal is not before the Court, and does not require postponement of the motion to tax hearing.

Order

Defendants' motion is **granted in part and denied in part**. The motion is granted as to recordation of the judgment, or any easement instrument derived from the judgment. The motion is denied as to the hearing on Defendants' motion to tax costs, which shall proceed as scheduled on May 28, 2026.

Nothing in this order shall be construed to prevent Plaintiff, or her household members, guests, or invitees, from continuing to use the Muir Oaks roads to access her property at 4784 Venner Road during the pendency of the appeal.

18. 9:00 AM CASE NUMBER: MSC20-02134

CASE NAME: TERESA NEENO VS. BARRY HACK

***HEARING ON MOTION IN RE: TAX COSTS**

FILED BY: KINDER, JUSTIN S.

TENTATIVE RULING:

Defendants Michael Kylo, Tammy Kylo, Robert French, Julie French, Paul Engler, Rita Engler, Branon Long, Justin S. Kinder, as Trustee of the Justin S. Kinder Trust dated August 11, 2015; Vicky D. Jared, as Trustee of the Jared Family Revocable Trust U/A/D 08-09-07; Marc D. Palechek And Micah V. Palechek, as Co-Trustees of the Palechek Revocable Family Trust dated May 19, 2015; Gilbert French And Patricia French, as Co-Trustees of the Gilbert French and Patricia French Trust Dated August 11, 2004; David Timothy Hjortsvang And Erick Warren Hjortsvang, as Co-Trustees of the Hjortsvang Trust move to strike, or in the alternative, tax costs. Judgment was entered in favor of Plaintiff Teresa Neeno in this Quiet Title action on November 6, 2025 and she filed a Memorandum of Costs totaling \$72,034.56.

Pursuant to Code of Civil Procedure sections 1034 and 1033.5, certain costs may be claimed by a prevailing party. The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

This matter initially involved dozens of defendants. Some were defaulted and some dismissed after settlement. The remaining Defendants, named above, are 15 individuals representing 9 households. Defendants argue at various points that costs and fees relating to the dismissed or defaulted

defendants are not allowable. That argument oversimplifies the question. It is not universally true that costs relating to defaulted or dismissed defendants should not be allowed. It will depend on the type of fees or cost. The costs will be addressed in turn.

Service of Process

Plaintiff seeks costs relating to service of process on all defendants. The costs relating to the *initial* service of process and all service on the remaining Defendants—\$11,270.59—are allowable. Although Plaintiff *could* have sought alternate means—such as notice and acknowledgement of receipt—there is no showing that the form of service sought by Plaintiff was improper.² The Court will, however, strike costs in the amount of \$5,295.08 because this service arose out of a pleading error by Plaintiff *and* the costs relate to dismissed or defaulted defendants. Code of Civ. Pro. § 1033.5(a)(4).

Filing and Motion Fees

Initially Defendants argued that filing and motion fees relating to dismissed or defaulted defendants are not allowable. On reply, they provided no substantive information to separate out these fees. These costs will be allowed except where they clearly relate to default filings or dismissals of defendants, as those could have been sought through default proceedings or settlement negotiations. Code of Civ. Pro. § 1033.5(a)(1). The court sees the following relevant fees to strike: 10/11/2022 for \$7.71, 7/27/2023 for \$12.69, 8/3/2023 for \$12.69, 5/21/2024 for \$13.82, 10/11/2024 for \$14.45

Court and Agency Fees

Plaintiff seeks reimbursement of court and agency fees. To the extent these involve fees for defaults, this is the same determination as above. Plaintiffs concede that if “some fees relate solely to dismissed defendants, a proportional allocation would be appropriate.” Therefore, on Defendants’ showing, these will be excluded. The remainder will be allowable. Code of Civ. Pro. § 1033.5(a)(14). The court sees the following relevant fees to strike: 12/1/2020 for \$89.38, 4/5/2021 for \$134.38, 4/30/2021 for \$89.38, 5/12/2021 for \$116.08, 5/14/2021 for \$89.38, 5/18/2021 for \$116.08, 6/1/2021 for \$111.88, 1/4/2022 for \$135.20, 1/5/2022 for \$136.70, 1/12/2022 for \$93.20, 5/2/2022 for \$94.60, 5/27/2022 for \$138.20, 6/10/2022 for \$138.20.

Deposition Costs

Costs relating to the taking, video recording, and transcribing of necessary depositions are allowable. Code of Civ. Pro. § 1033.5(a)(3). Defendants have not presented evidence that the depositions were unnecessary. Even depositions of third parties can be relevant to a case, so the argument that depositions of dismissed defendants are not necessary is unavailing without additional information.

Recording Fees

Plaintiff seeks costs relating to recording documents with the government. Plaintiff notes that she was “required to file and record a lis pendens against each affected property.” Defendants do not rebut this point. These costs will be allowed.

² Indeed, given the history of this case, both before litigation and during litigation, suggests that such alternate service may have been far more expensive and ultimately unsuccessful.

Notary Fees

Plaintiff seeks notary fees. Defendants appear to concede these in their reply brief, and they will be allowed.

Transcripts

Plaintiff seeks costs relating to transcripts not ordered by the court. Transcript fees are not recoverable unless ordered by the Court.³ Plaintiff appears to concede the striking of these costs in her opposition. These costs will be stricken.

Experts

Plaintiffs appear to concede that expert fees are not allowable here. Code of Civ. Pro. § 1033.5(b)(1).

Investigation/Title Research

Plaintiffs appear to concede that investigation and title research costs are not allowable here. Code of Civ. Pro. § 1033.5(b)(2).

Postage/Telephone/Copying

Plaintiffs appear to concede that postage, telephone, and copying costs are not allowable here. Code of Civ. Pro. § 1033.5(b)(3).

The parties are directed to recompute the amount of costs awarded based on the Court's rulings and to submit new contentions no later than June 25, 2026. The matter will be continued to July 23, 2026, 9:00 a.m. The Court will not take *new arguments* not initially raised, but will only accept clarifications. If the parties stipulate to the *amount* in response to the Court's order—the Court does not expect concessions as to appealability or propriety of the orders, but simply a mathematical agreement—then the July 23, 2026 hearing may be vacated.

19. 9:00 AM CASE NUMBER: N26-0056
CASE NAME: PETITION OF: NATIONAL DEFAULT SERVICING CORPORATION
HEARING IN RE: PETITION FOR RELEASE OF SURPLUS FUNDS
FILED BY: NATIONAL DEFAULT SERVICING CORPORATION
TENTATIVE RULING:

On May 10, 2024, the subject property—1250 Summer Lane, Richmond, California—was sold at foreclosure. Petitioner, the foreclosure trustee has attempted to contact the interested party, Janelle Williams, but have been unsuccessful. Petitioner has paid outstanding liens. On January 16, 2026, the Court granted Petitioner's request to deposit undistributed surplus proceeds of the trustee's sale with the court. Notice was then sent to all potential claimants.

As of this date, the Court has received no claims to the surplus funds. The Court will now order that these surplus funds remain in trust. If there are no claims to these surplus funds for the statutory

³ "Ordered by the court" modifies "transcript," not "court reporter."

period, the funds will escheat to the State.

This case is dismissed.

20. 9:00 AM CASE NUMBER: N26-0261
CASE NAME: LOS HERMANOS LOPEZ, LLC, VS. EUN EIM
***HEARING ON MOTION IN RE: FOR NEW TRIAL**
FILED BY: EIM, EUN A.
TENTATIVE RULING:

On March 27, 2026, the date set for trial, Plaintiff Los Hermanos Lopez, LLC and Defendants Eun A. Kim, individually and dba Korean BBQ Plus appeared before this Court. Both Plaintiff and Defendants were represented by counsel. No jury fee had been paid. Over a request for a continuance by Defendants, the Court proceeded with a bench trial. The trial concluded the same day, and the Court found in favor of the Plaintiff. Defendant filed this Motion for a New Trial on April 6, 2026. The Court has received no timely opposition to this Motion. It is worth noting, however, that Plaintiff has filed paperwork for Judgment and Writ of Possession, as well as opposition to an intervening ex parte application to stay the execution of judgment. It is presumed that Plaintiff opposes this Motion, although an opposition should have been filed.

Defendants advance several reasons for a new trial. First, they argue that they were not prepared for trial because it was noticed as a jury trial. This is of no consequence, as parties are expected to be ready for the first day of trial, regardless of its format. Nothing on the docket or otherwise suggested that March 27 was to be a pre-trial conference. There was additionally no evidence on the docket that a jury fee had been posted, and Defendant would not have been able to post a jury fee as the deadline had passed. Code Civ. Pro. § 631(c)(1). The Court provided the parties an opportunity to resolve the issue by giving them time with a representative from the Congress of Neutrals. Counsel was given sufficient time to return to his office and retrieve key documents. There was simply no prejudice or irregularity.

The Court additionally heard and determined that it was not appropriate to address Defendants' unilateral attempt to offset the purported overcharges by failing to pay rent. The Court determined that this process was not a reasonable interpretation of the lease agreement. This argument was fully considered and rejected. Moreover, there was substantially evidence at trial—volunteered by Defendant herself—that the reason she stopped paying rent was that her business had insufficient funds, not that she deemed there had been an overcharge.

Finally, Defendants argue that because the Three-Day Notice contained rent due from more than one year prior (January 2025) and an erroneous amount for October 2025, it failed to comply with the strict requirements and thus the unlawful detainer proceeding was invalid. As to the first issue, Defendants cite *Bevill v. Zoura* (1994) 27 Cal.App.4th 694, 697. Defendants ignore, however, the subsequent case of *Levitz Furniture Co. v. Wingtip Communications* (2001) 86 Cal.App.4th 1035, which clarified *Bevill*. In *Levitz*, as here, there was unpaid *recent* rent but the three-day notice contained overdue rent from more than one year prior. The Court held, “[W]e see no reason why a three-day notice that demands payment of rents due within one year of the notice is automatically invalidated

because it also sets out (or demands) rent due *more* than a year before the notice. Such invalidation is not mandated by the policy underlying the second provision of section 1161(2), that is, preventing a landlord from using long overdue rent--but no rent unpaid within one year--to effect an eviction." (*Id.* at 1041.)

With respect to the second issue, this was the result of an accounting/data entry error on the part of the Plaintiff. Had Defendants tendered the amount sought, minus the October rent, they would have tendered 89% of the past-due amount. Code of Civ. Pro. § 1161.1(e).

For all practical purposes, if a tenant tenders a sum that is within 20 percent of the sum ultimately determined to be due (and pays the difference within five days of the "effective date of the judgment"), he or she will retain the right of possession. (§ 1161.1, subds. (a) & (e).) Examined in that light, section 1161.1 provides benefits to both landlords and tenants. Landlords gain a tool that, as analyzed above, is useful and appropriate in a commercial setting, where rents are not always easily fixed. Tenants gain a tool to avoid eviction, when a landlord fails to provide a "reasonable" estimate of the rent due in a three-day notice."

(*Id.*) For this commercial lease, the provisions have been satisfied.

Defendants' Motion is therefore **denied**.